

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Mleczkowski	Team: Team # 3	CCRB Case #: 201307942	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/23/2013 6:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/23/2015	Precinct: 44		
Date/Time CV Reported Wed, 08/28/2013 12:51 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 08/28/2013 12:51 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexis Dejesus	01421	946903	044 PCT
2. SGT Gabriel Diaz	00588	925411	044 PCT
3. SGT Richard Zacarese	00000	924643	Intel Crim Section

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Brown	24894	948704	044 PCT
2. Officers			Unknown
3. INS Kevin Catalina	00000	900234	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexis Dejesus	Abuse: PO Alexis Dejesus stopped § 87(2)(b)	A . Exonerated
B . SGT Gabriel Diaz	Abuse: Sgt. Gabriel Diaz stopped § 87(2)(b)	B . Exonerated
C . POM Alexis Dejesus	Abuse: PO Alexis Dejesus frisked § 87(2)(b)	C . Exonerated
D . SGT Gabriel Diaz	Abuse: Sgt. Gabriel Diaz frisked § 87(2)(b)	D . Exonerated
E . SGT Richard Zacarese	Abuse: Sgt. Richard Zacarese questioned § 87(2)(b)	E . Unsubstantiated
F . SGT Richard Zacarese	Abuse: Sgt. Richard Zacarese searched § 87(2)(b)	F . Unsubstantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the City of New York's 311 Customer Service Center via an online complaint form on August 28, 2013 (encl. E1-E5), which was forwarded to the CCRB on the same date (encl. D1-D2).

§ 87(2)(e), § 87(2)(f) At approximately 6 p.m., officers subsequently responded to that location and the following allegations resulted:

- **Allegation A- Abuse of Authority: PO Alexis Dejesus stopped** § 87(2)(b)
- **Allegation B- Abuse of Authority: Sgt. Gabriel Diaz stopped** § 87(2)(b)
- **Allegation C- Abuse of Authority: PO Alexis Dejesus frisked** § 87(2)(b)
- **Allegation D- Abuse of Authority: Sgt. Gabriel Diaz frisked** § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C and D** be closed as **exonerated**.

- **Allegation E- Abuse of Authority: Sgt. Richard Zicarese questioned** § 87(2)(b)
- **Allegation F- Abuse of Authority: Sgt. Richard Zicarese searched** § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

- § 87(2)(g), § 87(4-b)

§ 87(2)(b) rejected mediation.

Results of Investigation

Civilian Statements:

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic man who was § 87(2)(b) at the time of the incident. He is § 87(2)(b). § 87(2)(b) has dark brown hair and green eyes.

CCRB Testimony:

§ 87(2)(b) provided a telephone statement to the undersigned investigator on September 4, 2013 (encl. F1) and he was interviewed at the CCRB on September 12, 2014 (encl. F2-F6).

§ 87(2)(g)

On August 23, 2013 at 5:15 p.m. § 87(2)(b) was seated in front of his residence, located at § 87(2)(b) in the Bronx, with his girlfriend § 87(2)(b). A black police vehicle stopped in front of his residence and two officers identified via investigation as PO Alexis Dejesus and Sgt. Gabriel Diaz of the 44th Precinct, Sgt. Richard Zicarese of the Crime

Intelligence Section and an additional unidentified officer exited and approached § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) described PO Dejesus as a dark-skinned Hispanic man, uniformed, in his 40s, 5'5"-5'6" tall, with a stocky build and Sgt. Diaz as a Dominican man, uniformed and not older than 40 years old. Sgt. Zicarese is a white man, who weighed under 200 pounds, was 5'9"-5'10" tall, had black and white hair, was in his 50s and solely described him as wearing a white shirt. The unidentified officer was a white man with a stocky build, short black hair, was 5'6"-5'7" tall, plain clothed and wore a grey shirt. § 87(2)(b) could not determine that officer's age, although he stated that he looked older and was fit for his age.

The officers instructed § 87(2)(b) to stand up and he complied with that directive. § 87(2)(b) placed his hands against the wall and PO Dejesus shook § 87(2)(b)'s shorts and touched his penis and buttocks above his clothing, which lasted for a few seconds. § 87(2)(b) did not provide additional details regarding the frisk. The officers then asked § 87(2)(b) to sit in a corner located inside of the lobby of his residence and he complied with that directive.

§ 87(2)(b) was informed by his aunt, § 87(2)(b) that PO Dejesus, Sgt. Zicarese and Sgt. Diaz then went inside of the residence, upstairs and asked her for the mailbox key which she furnished. The officers looked inside of the mailbox and nothing was recovered from the search. § 87(2)(b) was subsequently informed that a phone call was placed stating that § 87(2)(b) had a gun in his mailbox.

§ 87(2)(b) told § 87(2)(b) that the officers asked her where § 87(2)(b) slept and when they asked her if they could search the room, she responded that they could not, since she did not want them to "mess up" her house without a judge's order.

Witness: § 87(2)(b)

- § 87(2)(b) is a Hispanic woman who was § 87(2)(b) at the time of the incident. § 87(2)(b) has dark brown hair and brown eyes.

CCRB Testimony:

§ 87(2)(b) provided a telephone statement on September 4, 2013 (encl. G1) and was interviewed at the CCRB on September 12, 2013 (encl. G2-G7). § 87(2)(g)

While § 87(2)(b) and § 87(2)(b) sat in front of their residence, a black car pulled up and PO Dejesus and Sgt. Diaz exited that vehicle. Sgt. Zicarese and an unidentified officer then exited a second car, which was dark blue or black and off to the side of the street. Sgt. Zicarese was a white man, between 5'8"-6' tall, between 40-50 years old and was plain clothed. The unidentified officer was a white man with white hair, 6' tall, uniformed and wore a white shirt.

PO Dejesus and Sgt. Diaz approached § 87(2)(b) and directed him to stand up. § 87(2)(b) complied and the officers told him to put his hands on the wall. PO Dejesus and Sgt. Diaz subsequently patted down § 87(2)(b)'s ribs, arms and pants.

As § 87(2)(b) was being frisked, Sgt. Zicarese asked § 87(2)(b) "What do you have in there?" referring to her purse. § 87(2)(b) responded that she had personal items, as well as her children's items, inside of it. Sgt. Zicarese then directed her to open her bag and she complied and moved her items around while he looked inside of it.

Witness: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b)'s aunt. Her pedigree information is unknown.

CCRB Testimony:

§ 87(2)(b) provided a telephone statement to Investigator Arlyn Rodriguez on December 9, 2013 (encl. H1).

On the date of the incident, Sgt. Zacaese and Sgt. Diaz knocked on her apartment door and told her that they received a report of her nephew § 87(2)(b) having a revolver in his mailbox. § 87(2)(b) allowed the officers to come into her home.

§ 87(2)(b) showed them § 87(2)(b)'s bed and gave them permission to look underneath it. § 87(2)(b) allowed the officers to search that room, but they only looked under the bed's mattress and under the bed. Subsequently, the officers asked § 87(2)(b) if they could search her mailbox and she gave them consent to do so. She led the officers to the mailbox and opened it for them, however contraband was not recovered from the search.

§ 87(2)(b) stated that there was no need for anyone to file this complaint as she is the owner of the apartment and she gave the officers consent to enter and search it. § 87(2)(b) did not wish to participate in this investigation as she gave the officers consent to enter and search her apartment and to search her mailbox.

Attempts to Contact Civilians:

The undersigned investigator called the telephone number listed for § 87(2)(b) on the SPRINT report on November 26, 2013 and the opportunity to leave a voice message was unavailable. § 87(2)(b) was the superintendent of § 87(2)(b)'s building at the time of the incident. The undersigned investigator called the aforementioned telephone number and the telephone number listed for him on the SPRINT report on December 2nd, 10th, and 20th, 2013 and the opportunity to leave a voice message was unavailable. The undersigned investigator left a voice message for § 87(2)(b) on January 29, 2014. A please call letter was mailed to § 87(2)(b) on December 10, 2013. This letter has not been returned to the CCRB by the United States Postal Service. As of the date of this report, § 87(2)(b) has not contacted the undersigned investigator in order to schedule an in-person interview.

NYPD Statements:

Subject Officer: PO ALEXIS DEJESUS

- *PO Dejesus is a Hispanic man who was § 87(2)(b) old at the time of the incident. He is § 87(2)(b), with brown hair and brown eyes.*
- *PO Dejesus was assigned to the Strategic Enforcement Team, from 2 p.m. on August 23, 2013 to 12:35 a.m. on August 24, 2013, in uniform and partnered with Sgt. Diaz.*

Stop, Question and Frisk Report:

UF-250 number § 87(2)(b) was completed by PO Dejesus and reviewed by Sgt. Diaz (encl. I1-I2). The report states that this incident occurred on August 23, 2013, at 6 p.m., at § 87(2)(b) in the Bronx, between § 87(2)(b) and § 87(2)(b). The name of the individual stopped was unknown, however he is described as a white Hispanic man, § 87(2)(b), with green eyes, brown hair, a thin build and his date of birth was § 87(2)(b).

The additional factors noted as the reason for the stop were that there was a report from a victim/witness/officer and there was an ongoing investigation. The frisk basis was that a violent crime was suspected, knowledge of the suspects' prior criminal behavior and actions indicative of engaging in violent crimes. It was noted that the demeanor of the person stopped was agitated.

Memo Book:

PO Dejesus did not document any memo book entries in regards to this incident (encl. I3-I4).

CCRB Statement:

PO Dejesus was interviewed at the CCRB on December 20, 2013 and provided the following testimony (encl. I4-I5).

On August 23, 2013 at 5:15 p.m. PO Dejesus was driving in his black police vehicle with Sgt. Diaz when he received a radio run called in from § 87(2)(e), § 87(2)(f)

§ 87(2)(b) however PO Dejesus could not recall the address at the time of his interview. § 87(2)(f)

The officers arrived at the location listed in the radio run, where he observed that § 87(2)(b) stood outside and § 87(2)(b) was in the lobby. PO Dejesus requested § 87(2)(b)'s identification and § 87(2)(b) was compliant. PO Dejesus explained to § 87(2)(b) the reason for the stop, including that a man had alleged that § 87(2)(b) had pointed a gun towards him which he kept in his mailbox. § 87(2)(b) became agitated and stated that he did not have a gun. PO Dejesus immediately entered the lobby of the building and patted § 87(2)(b) down. PO Dejesus did not shake § 87(2)(b)'s shorts and did not touch his penis or buttocks. PO Dejesus did not enter § 87(2)(b)'s pockets or place his hands beneath his clothing. PO Dejesus may have patted his ribs, arms or pants area. PO Dejesus patted the parts of § 87(2)(b)'s body where he may have had a gun but he could not remember the exact parts of his body with which he came into contact.

After § 87(2)(b)'s frisk and while PO Dejesus was within the building, § 87(2)(b) was outside of the building and requested to have § 87(2)(b)'s property. PO Dejesus yelled out to § 87(2)(b) and stated that § 87(2)(b) was not being arrested. PO Dejesus solely observed § 87(2)(b) where she stood in front of the building, following § 87(2)(b)'s frisk. PO Dejesus stated that he did not hear any conversation at the incident location regarding a purse that was searched and PO Dejesus did not see any officers search any civilian's purses.

§ 87(2)(b) then arrived and the officers explained the situation to her. § 87(2)(b) opened the mailbox for Sgt. Diaz and PO Dejesus, who looked inside but did not find a weapon. § 87(2)(b) then invited Sgt. Diaz to come upstairs and into her apartment and Sgt. Diaz followed her upstairs, while PO Dejesus remained on the first floor of the building. The officers called for an additional unit that arrived, and a male, Hispanic Field Intelligence Officer arrived, identified via investigation as Sgt. Richard Zicarese, and went upstairs to § 87(2)(b)'s apartment. PO Dejesus remained downstairs and explained to § 87(2)(b) the circumstances for the stop and that there was no offense committed, so PO Dejesus completed a UF-250 and left.

Subject Officer: SERGEANT GABRIEL DIAZ

- Sgt. Diaz is a Hispanic man who was § 87(2)(b) old at the time of the incident. He is § 87(2)(b), with brown hair and black eyes.
- Sgt. Diaz worked the same tour and assignment as PO Dejesus.

Memo Book:

Sgt. Diaz made the following memo book entry in regards to this incident (encl. K1-K2):
“16:40: 10-10 firearm § 87(2)(b). 17:10: respond to § 87(2)(b) 17:20: 1 250 prepared.”

CCRB Testimony:

Sgt. Diaz was interviewed at the CCRB on January 29, 2014 and provided the following testimony, § 87(2)(g) (encl. K3-K5):

§ 87(2)(e), § 87(2)(f)

PO Dejesus and Sgt. Diaz exited their patrol vehicle at the same time and were the initial responding officers. Sgt. Diaz originally stated that both officers frisked § 87(2)(b) however Sgt. Diaz later stated that he did not know which officer frisked him. Sgt. Diaz and PO Dejesus decided that it was necessary to frisk § 87(2)(b) § 87(2)(f)

Sgt. Richard Zacarese, the Field Intelligence Officer, was present at the incident location; however Sgt. Diaz does not believe that he was present for the frisk of § 87(2)(b) Sgt. Diaz believes that two officers may have arrived at the location.

Sgt. Diaz did not see any bulges on § 87(2)(b)'s person. Sgt. Diaz stopped him because of the allegation § 87(2)(f)

Sgt. Diaz frisked § 87(2)(b) to make sure that he did not have a weapon on him. Sgt. Diaz believes that he patted § 87(2)(b)'s waist. He did not place his hands inside of his waistband. Sgt. Diaz did not recall if he shook § 87(2)(b)'s shorts, did not touch his buttocks or penis, and did not enter his pockets or place his hands beneath his clothing. Sgt. Diaz did not pat § 87(2)(b)'s pants, ribs or arms. Sgt. Diaz did not see what parts of § 87(2)(b)'s body PO Dejesus came in contact with. Sgt. Diaz did not come in contact with any other part of § 87(2)(b)'s body. Additionally, Sgt. Diaz did not remember seeing § 87(2)(b) at the incident location.

Sgt. Diaz then went upstairs and spoke with § 87(2)(b) Sgt. Diaz did not request permission from § 87(2)(b) before going upstairs to his apartment. § 87(2)(b) informed Sgt. Diaz that he lived in § 87(2)(b) and this was also mentioned in the radio run. Sgt. Diaz went upstairs solely for the purpose of the firearm. Sgt. Diaz explained to § 87(2)(b) why he was at the apartment. § 87(2)(b) invited Sgt. Diaz and Sgt. Zacarese into her apartment and showed them § 87(2)(b)'s room. She voluntarily opened the mailbox, which Sgt. Diaz looked inside of and no firearm was recovered.

Subject Officer: SERGEANT RICHARD ZACARESE

- Sgt. Zacarese is a white man who was § 87(2)(b) old at the time of this incident. He is § 87(2)(b), with black hair and brown eyes.
- Sgt. Zacarese was assigned as the Field Intelligence Officer, from 10:30 a.m. to 7:05 p.m., was plain clothed and partnered with Inspector Kevin Catalina.

Memo Book:

Sgt. Zacarese did not document any memo book entries in regards to this incident (encl. L1-L2).

CCRB Testimony:

Sgt. Zacarese provided the following testimony to the CCRB on April 23, 2014, § 87(2)(g)

(encl. L3-L4):

Sgt. Zacarese and Inspector Kevin Catalina of the 44th Precinct arrived at the incident location in response to the two radio runs of a gun that was present at that location. There were approximately six male officers present, including Sgt. Diaz and PO Dejesus. Sgt. Zacarese could not recall which additional officers were present.

§ 87(2)(b) was in the courtyard of § 87(2)(b) speaking with Sgt. Diaz. Sgt. Zacarese did not see Sgt. Diaz or PO Dejesus make any physical contact with § 87(2)(b)

Sgt. Diaz and PO Dejesus entered the building, however Sgt. Zacarese could not attest to their actions while therein. Sgt. Zacarese stayed in the lobby of the building and he could not remember if he went to any additional floors while inside of the building.

Sgt. Zacarese had a general interaction with the public, including telling individuals to step away from the building. Sgt. Zacarese did not ask a woman at the incident location “What do you have in there?” referring to her purse or bag. He did not direct any women to open their bags and he did not look within any woman’s purses during this incident.

Additional Officer Interviewed:

PO Sean Brown was interviewed at the CCRB on December 20, 2013 (encl. J1-J4). PO Brown was assigned to the 44th Precinct’s Strategic Enforcement Team, from 2 p.m. to 11:35 p.m., in uniform and partnered with PO Cruz and PO Hubbard. He was interviewed because the 44th Precinct roll call indicated that PO Brown was partnered with PO Dejesus at the time of the incident, however § 87(2)(g) he was not present during this incident.

NYPD Document:**SPRINT Report:**

SPRINT number § 87(2)(b) (encl. M29-M35) notes that on August 23, 2013 at 4:46 p.m., § 87(2)(b) § 87(2)(b), § 87(2)(f) called 911 in order to file a complaint against a light-skinned Hispanic man, short in height, approximately § 87(2)(b) cross-eyed, wearing brown shorts and a short-sleeved t-shirt. § 87(2)(b) stated that his assailant either had a gun in his possession or it was hidden inside of § 87(2)(b) within mailbox number § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of April 3, 2014, which is past the 90-day filing deadline, with regard to the incident (encl. O1).

(b) (7)(C), (b) (7)(D)

[REDACTED]

[REDACTED]

(b) (7)(C), (b) (7)(D)

[REDACTED]

[REDACTED]

(b) (7)(C), (b) (7)(D)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

- This is the second CCRB complaint involving § 87(2)(b) (encl. C1):
 - § 87(2)(b) [REDACTED].
- This is the first CCRB complaint involving § 87(2)(b) (encl. C2).

- PO Alexis Dejesus has been a member of the service for five years and there is one substantiated allegation against him (encl. B1-B2).
 - In CCRB case number 201108063, the Board recommended Charges for an abuse of authority allegation and Instructions were issued to PO Dejesus by the NYPD.
- Sgt. Gabriel Diaz has been a member of the service for 14 years and there is one substantiated CCRB allegation against him (encl. B3-B5).
 - In CCRB case number 200612602, the Board recommended Charges for an abuse of authority allegation and Instructions were issued to Sgt. Diaz by the NYPD.
- Sgt. Richard Zacaress has been a member of service for fourteen years and there are three substantiated allegations against him (encl. B6).
 - In CCRB case number 200501827, the Board recommended Charges for abuse of authority and discourtesy allegations and Instructions were issued to Sgt. Zacaress by the NYPD.
 - In CCRB case number 201003271, the Board recommended Charges for an abuse of authority allegation and no disciplinary action was taken against Sgt. Zacaress by the NYPD.

PO Dejesus and Sgt. Diaz admitted to interacting with § 87(2)(b) Sgt. Zacarese admitted that he responded to the incident location in regards to this incident.

§ 87(2)(g)

Allegation B- Abuse of Authority: Sgt. Gabriel Diaz stopped § 87(2)(b)

Allegation C- Abuse of Authority: PO Alexis Dejesus frisked § 87(2)(b)

Allegation D- Abuse of Authority: Sgt. Gabriel Diaz frisked § 87(2)(b)

It is undisputed that PO Dejesus and Sgt. Diaz stopped and frisked § 87(2)(b) PO Dejesus and Sgt. Diaz both admitted to stopping § 87(2)(b) based on the description § 87(2)(f) of the individual who was in possession of a firearm. Both officers indicated that § 87(2)(b) was held within the vestibule of his building while Sgt. Diaz and Sgt. Zaccarese went upstairs to speak to § 87(2)(b) regarding the possibility of a firearm within the mailbox.

In Police Department v. David Parson, Oath Index No. 1925/08 (2012) (encl. A1-A2), an identified citizen witness pointed out a defendant to an officer and informed the officer that the defendant had a firearm. Accordingly, the officer had, at least, reasonable suspicion to justify a stop and frisk. The disposition of this case was that the location of a deadly weapon was at issue, and it was reasonable to clarify the discrepancy between the witness's accusation and the results of the frisk.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C and D** be closed as **exonerated**.

Allegation E- Abuse of Authority: Sgt. Richard Zaccarese questioned § 87(2)(b)

Allegation F- Abuse of Authority: Sgt. Richard Zaccarese searched § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Zaccarese asked her “What do you have in there?” referring to her purse and asked her to open her bag, with which she complied. § 87(2)(b) additionally alleged that Sgt. Zaccarese looked inside of her bag once it was open. § 87(2)(b) did not raise this allegation and § 87(2)(b) was not present for this portion of the incident.

PO Dejesus stated that he did not hear any conversation at the incident location regarding a purse that was searched and PO Dejesus did not see any officers search any civilian’s purses. Sgt. Diaz did not remember seeing § 87(2)(b) at the incident location. Sgt. Zaccarese stated that he did not ask a woman at the incident location “What do you have in there?” referring to her purse. Sgt. Zaccarese stated that he did not direct any women to open their purses and he did not look within any women’s purses during this incident.

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date